

		Since that time, however, Petitioner demonstrates that it has effectuated proper service on Respondent. Specifically, Petitioner sets forth evidence that Respondent's counsel agreed to accept service of documents in this manner by email, and that Petitioner subsequently served the Petition on counsel in this manner. (Lopez Decl., ¶¶ 3-5, Ex. B.) Respondent's counsel never responded that he was not authorized to accept service. (Lopez Decl., ¶ 5.) Pursuant to Code Civ. Proc., § 416.90, "summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process." In <i>Warner Bros. Records, Inc. v. Golden West Music Sales</i> (1974) 36 Cal.App.3d 1012, the Court of Appeal reversed the lower court's grant of a motion to quash service of summons, holding that service on the defendants' attorney was sufficient per § 416.90. Like in this matter, the defendants argued that the attorney was not authorized to receive service of process on behalf of them and, which was supported by declarations. (<i>Id.</i> at 1015.) The court held that because counsel was retained as the defendants' attorney, he was their agent. (<i>Id.</i> at 1017.) The court found that the essential factor here is that [counsel's] relationship with the individual defendants may have been sufficiently close and enduring to make it reasonably certain that they would be apprised of the service on [counsel] upon their behalf. (<i>Id.</i> at 1018.) For the same reasons, the Court here finds that Petitioner has shown proper service pursuant to Code Civ. Proc., §§ 416.90 and 1290.4. The Court is thus inclined to grant the motion to confirm the arbitration award, and vacate the upcoming hearing on Respondent's motion to quash, as it will be rendered moot. However, before the Court will enter an order confirming the arbitration award, <u>Petitioner is ordered to file a code-compliant proof of service of the Petition</u> (as is reflected by Ex. B to the Lopez Declaration). Petitioner is ordered to give notice.
11	2014-00738895 South County Bank, N.A. vs. Von Auto Care	South County Bank, N.A. Motion to Enforce Settlement Plaintiff Bank of Southern California, N.A., successor by merger to CalWest Bank, fka South County Bank, N.A.'s motion to enforce settlement agreement is GRANTED. In August of 2014, the parties entered into a binding Stipulation for Entry of Judgment. (Decl. of Hong, Ex. A). Pursuant to the Stipulation, Plaintiff was entitled to judgment against Defendants in the principal amount of \$54,600 with an interest rate of 6% per annum as calculated under the Stipulation. (<i>Id.</i> at ¶¶ 1-6.) In the event payment was not received within seven days of its due date, the Defendants would be in default and Plaintiff would be entitled to the full amount due. (<i>Id.</i> at 9.) Further, in the event a motion to enforce the terms of the Stipulation is made, Plaintiff would be entitled to recover \$54,600, less principal payments made, plus accrued interest, attorney fees of \$1,500 and court costs and which shall provide for an order entitling Plaintiff to the collateral identified in the UCC financing statement filed with the Secretary of State of the State of California on September 27, 2004, filing number 04-7000572328 and recorded with the Orange County recorder on September 30, 2004 as document no. 2004000879322 and with the UCC continuation statements that were filed with the Secretary of State of the State of California on May 14, 2009,

		filing number 09-71965238 and on May 27, 2014 as filing number 14-74132617. (Id. at ¶ 13.) In April and May, 2015, the parties entered into an Amended Stipulation. (Decl. of Hong, Ex. F.) The Amended Stipulation changed the principal balance to \$52,638.66 with a new payment schedule. All other terms of the original Stipulation remained. Defendants defaulted on the Stipulation Agreements by failing to make the monthly payment due on May 20, 2021, and each subsequent payment due thereafter. (Decl. of Hong, ¶ 19.) As of the date of the motion was filed (8/11/23), Defendant has not cured the default. Based upon the foregoing, the motion is granted. Judgment in the amount of \$42,351.12 is entered against Defendants. Plaintiff to give notice.
12	2023-01328650 Swift Financial, LLC vs. West Egg Enterprises, Inc.	Swift Financial, LLC Petition to Confirm Arbitration Award Petitioner Swift Financial, LLC's petition for confirmation of its arbitration award in the amount of \$119,091.84 in its favor and against respondents West Egg Enterprises and Jermaine Massey is granted. The Petition attaches a signed consent to immediate confirmation of this arbitration award in this Court. Thus, the Court will enter Judgment against both properly served Respondents.
13	2023-01301637 In Re: 22145 Pheasant Street, Lake Forest, CA 92630	Petitioner Quality Loan Service Corp Motion for Claims to Surplus Funds The claim by Orange County Department of Child Support Services ("Claimant") for \$9,268.39 of the surplus funds deposited by Petitioner Quality Loan Service Corp. is granted. Claimant showed it recorded an Abstract of Judgment with the Orange County Recorder's Office relating to the child support orders issued on 1/26/2009 and 11/9/2010. Claimant also showed that as of the date of the Trustee's Sale, 11/29/2021, Poema E. Brandom, also known as Poema Smith, owed \$9,268.39 in unpaid child support obligations. Claimant showed Claimant is entitled to \$9,268.39 of the surplus funds. No claims having been asserted to the balance of the \$164,349.34 deposited by Petitioner. The remaining balance of \$155,080.95 are the remaining undistributed surplus proceeds from the Trustee's sale for the property located at 22145 Pheasant Street, Lake Forest, CA 92630. The court orders that the funds will stay on deposit until such time as a claim to the funds is asserted or the funds either escheat to the State pursuant to Code Civ. Proc. § 1519 or are transferred to the court's operating fund under Code Civ. Proc §1502 and Govt. Code §§68084.1. An OSC re Dismissal is set for 12/3/26 at 9:30AM at which time the Court will consider finding the funds subject to escheatment. Clerk to provide notice.